

		Plaintiff has not shown this factor supports a finding of substantive unconscionability. For the same reasons, Plaintiff's request that any order granting arbitration be conditioned upon Defendants either paying Plaintiff's share of the arbitration costs and fees up front or waiving their right to arbitration is DENIED. Accordingly, the motion to compel arbitration is GRANTED. Plaintiff's request for judicial notice is DENIED as to Items 1-2 and 4-9. (<i>Center for Community Action & Environmental Justice v. City of Moreno Valley</i> (2018) 26 Cal.App.5th 689, 695, fn 4 [declining to take judicial notice of records not necessary for court's analysis].) Plaintiff's request for judicial notice is GRANTED as to Item 3. (Evid. Code, § 452(h).) The entire action is STAYED pending completion of arbitration. The case management conference set for today is OFF-CALENDAR. A Status Conference re: Status of Arbitration is scheduled for December 4, 2026, at 9:30 a.m. Counsel for Defendants shall give notice.
8	Flicker v. Newport Harbor Post No. 291, of the American Legion	Defendant Newport Harbor Post No. 291, of the American Legion's unopposed Motion to Compel Arbitration and Stay Action is GRANTED. A party seeking to compel arbitration pursuant to Code of Civil Procedure section 1281.2 "has the burden of proving the existence of a valid arbitration clause and the dispute is covered by the agreement." (<i>Larian v. Larian</i> (2004) 123 Cal.App.4th 751, 760.) "If the moving party meets its burden, the opponent of arbitration has to prove by a preponderance of the evidence any defense to the petition or motion to compel the dispute to be arbitrated." (<i>Ibid.</i>) Here, the moving party has submitted two arbitration agreements signed by Plaintiff. The two subject agreements are separate from any other agreements, and are each clearly labelled "DISPUTE RESOLUTION AGREEMENT." Plaintiff has not opposed the motion. The action is ordered to arbitration and is stayed pending its outcome. The case management conference set for today is OFF-CALENDAR. Status conference re selection of arbitrator is set for December 4, 2026, at 9:30 a.m. Moving party to give notice.
9	Stein v. ActBlue Charities, Inc.	Before the Court are two motions. The first is a motion to quash service of summons filed by Defendants ActBlue Charities, Inc., ActBlue Civics, Inc., ActBlue Technical Services, Inc., and ActBlue

LLC (collectively, "ActBlue"). As set forth herein, the motion to quash is **GRANTED**. The second motion is a demurrer by ActBlue to the plaintiffs' complaint. Because the motion to quash has been granted, the demurrer is **MOOT**.

MOTION TO QUASH

A defendant may move to quash service of summons on the ground of lack of jurisdiction of the court over him or her. (Code Civ. Proc., § 418.10, subd. (a)(1).) The court may dismiss without prejudice the complaint in whole, or as to that defendant, when dismissal is made pursuant to Section 418.10. (Code Civ. Proc., § 581, subd. (h).) Code of Civil Procedure section 410.10, states, "A court of this state may exercise jurisdiction on any basis not inconsistent with the Constitution of this state or of the United States." In this motion, ActBlue seeks to quash service of summons and complaint based on lack of personal jurisdiction of the court.

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) Thus, the burden is on the plaintiff to demonstrate by a preponderance of the evidence that all jurisdictional criteria are met. (Ziller Electronics Lab GmbH v. Superior Court (1988) 206 Cal.App.3d 1222, 1232.)

Here, Plaintiffs Howard Stein and Linda Nicholes (Plaintiffs) do not dispute ActBlue's argument there is no basis for general jurisdiction. Instead, plaintiffs focus on specific jurisdiction. However, Plaintiffs' evidence falls well short of meeting their burden to establish specific jurisdiction.

Significantly, there is no evidence ActBlue targeted the plaintiff or targeted California. Instead, Nicholes concedes she was the one who accessed ActBlue's website to donate to her selected charities, to provide payment information, authorize the transactions and communicate with ActBlue. (Nicholes Decl. ¶4) It was Nicholes who initiated the contact with ActBlue as opposed to ActBlue reaching out to Nicholes.

Further, Plaintiffs do not dispute the statements in Benjamin Sharton's declaration where he stated that processing of all transactions was done in Massachusetts. Also, Plaintiffs do not dispute Sharton's declaration where he states that the parties agreed to "submit to personal and exclusive jurisdiction" in Massachusetts. As the Court stated in *Aquila, Inc. v. Superior Ct.* (2007) 148 Cal.App.4th 556, 572: "The contract includes clauses for New York choice of law and forum selection, which tends to weigh against a conclusion from this document that Aquila itself or its predecessor sought to do significant business in California. Under Vons, supra, 14 Cal.4th at page 449, it is not enough for a nonresident defendant to become subject to the specific jurisdiction of this state simply by entering into a contract with a California resident. The court in Goehring v. Superior Court (1998) 62

		Cal.App.4th 894, 907, states that a party's entry into a contract with an out-of-state party does not automatically demonstrate purposeful availment in the other party's home forum, particularly where the agreements were governed by out-of-state law." Moreover, Nicholes' assertion that ActBlue "solicited donations" from her is vague and not supported by any documentary evidence. First, plaintiffs do not describe which of the four defendants solicited donations. Second, plaintiffs provide no detail as to the actual solicitation. For example, Nicholes does not give one factual example as to when or in what form ActBlue solicited a donation from her for a specific charity. "Declarations are insufficient to support the assertions for which they are offered if they consist primarily of vague assertions of ultimate facts rather than specific evidentiary facts permitting a court to form an independent conclusion on the issue." <i>Jewish Def. Org., Inc. v. Superior Ct.</i> (1999) 72 Cal. App. 4th 1045, 1055. Based on the evidence submitted, Plaintiffs have not met their burden to establish that the four defendants purposely availed themselves of forum benefits. Accordingly, the motion is GRANTED and the complaint is DISMISSED, without prejudice, as to the four ActBlue defendants. <u>DEMURRER</u>: In light of the ruling on the motion to quash, the demurrer by ActBlue is MOOT. The case management conference set for today is OFF-CALENDAR. ActBlue shall give notice.
10	Mahgerefteh v. Garza	Before the Court are the following five motions filed by plaintiff/cross-defendant Nasser Mahgerefteh (Plaintiff) against defendant/cross-complainant Steven Anthony Garza (Defendant): 1) motion to compel further responses to special interrogatories, set one; 2) motion to compel further responses to form interrogatories, set one; 3) motion to compel further responses to requests for production of documents, set one (RFPs); 4) motion to compel further responses to requests for admission, set one (RFAs); and 5) motion to proffer evidence. For the reasons set forth below, the motions to compel further responses to special interrogatories, RFPs and RFAs are DENIED; the motion to compel further responses to form interrogatories is GRANTED as to nos. 4.1, 6.4 to 6.7, 7.1(d), 9.1(c), (d) and 16.2 (a)(b)(c) and is otherwise DENIED; and the motion to proffer evidence is DENIED. Where responses to interrogatories, document demands and/or requests for admission have been timely served but are deemed deficient by the requesting party (e.g., the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general), that party may file a motion to compel further responses. (Code of Civ. Proc. § 2030.300, subd. (a), § 2031.310, subd. (a), § 2033.290, subd. (a).) Unless the motion is served within 45 days after service of verified responses (extended two court days if served electronically) the requesting party waives any